



CHAPTER lxvii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Glasgow Corporation.

A.D. 1925.

[31st July 1925.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament :

62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed.

Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the Glasgow Corporation Order Confirmation Act 1925.

Short title.

A.D. 1925.

S C H E D U L E.

GLASGOW CORPORATION.

Provisional Order to authorise the corporation of the city of Glasgow to construct tramways and other works to extend the limits of the Corporation for the supply of gas to extend the time for the compulsory purchase of lands and the completion of certain works to make provision in connection with the joint collection of assessments to authorise the Corporation to borrow money and for other purposes.

WHEREAS under the Glasgow Tramways Acts 1905 to 1924 the corporation of the city of Glasgow (hereinafter referred to as "the Corporation" and "the city" respectively) have constructed and maintain tramways in and in the neighbourhood of the city and it is expedient that they should be authorised to construct and maintain the additional tramways hereinafter in this Order described :

And whereas it is expedient that the Corporation should be authorised to remove the building and structure forming the access to the subway station in St. Enoch Square in the city and to form a new access and underground passages thereto on an adjoining site as in this Order provided :

And whereas it is expedient that the limits of the Corporation for the supply of gas should be extended as in this Order provided :

And whereas it is expedient that the periods for the compulsory purchase of certain lands and for the completion of certain works which the Corporation are authorised to acquire and construct should be extended as in this Order provided :

And whereas it is expedient that in the event of any agreement between the Corporation and the parish council of the parish of Glasgow for the rates and assessments levied by that council for local purposes being collected and recovered by the Corporation the fractional parts of a pound of rent or value should be dealt with as in this Order provided :

And whereas it is expedient that the further powers in this Order mentioned including power to borrow further moneys should be conferred on the Corporation: A.D. 1925.

And whereas an estimate has been prepared by the Corporation in relation to the following purposes in respect of which they are by this Order authorised to borrow money and such estimate is as follows:—

	£
For the construction of tramways	- 27,528
For the provision and erection of electrical equipment in connection with tramways - - - - -	6,181
For the construction of underground passages - - - - -	17,000
For the purchase of lands for underground passages - - - - -	9,000

And whereas the works included in such estimate are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas plans and sections showing the lines and levels of the works authorised by this Order and also a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff-clerks of the counties of Lanark and Renfrew and with the town clerks of the city and the burgh of Rutherglen and such plans sections and book of reference are hereinafter respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

PART I.

PRELIMINARY.

1. This Order may be cited as the Glasgow Corporation Order 1925.

Short title
and cita-
tions.

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— This Order and the Glasgow Gas Acts 1910 to 1921 the Glasgow Gas (Standard of Calorific Power) Order 1917 and the Glasgow Gas (Charges) Order 1924 may be cited together as the Glasgow Gas Acts 1910 to 1925.

This Order and the Glasgow Police Acts 1866 to 1924 may be cited together as the Glasgow Police Acts 1866 to 1925.

This Order and the Glasgow Tramways Acts 1905 to 1924 may be cited together as the Glasgow Tramways Acts 1905 to 1925.

This Order and the Glasgow Water Acts 1855 to 1921 may be cited together as the Glasgow Water Acts 1855 to 1925.

This Order and the Glasgow Corporation Acts 1855 to 1924 and any other Act or Order passed during the present Session of Parliament relating to the Corporation may be cited together as the Glasgow Corporation Acts 1855 to 1925.

Order
divided into
Parts.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Lands.

Part IV.—Gas.

Part V.—Extensions of time.

Part VI.—Joint collection of rates.

Part VII.—Miscellaneous.

Interpreta-
tion.

3. The following words and expressions in this Order have unless there be something in the subject or context repugnant to such construction the meanings hereby assigned to them (that is to say) :—

“ Act of 1866 ” means the Glasgow Police Act 1866;

“ Act of 1910 ” means the Glasgow Gas Act 1910;

“ Act of 1914 ” means the Glasgow (Tramways Bridges &c.) Act 1914;

“ City ” means the city and royal burgh of Glasgow;

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“Corporation” means the Corporation of the city of Glasgow; A.D. 1925.

“Extension of Time Orders” means the Glasgow (Tramways Bridges &c.) Act 1914 (Extension of Time) Orders 1916 to 1918 made by the Secretary for Scotland in pursuance of the Special Acts (Extension of Time) Act 1915;

“Gas Acts” means the Glasgow Gas Acts 1910 to 1921 the Glasgow Gas (Standard of Calorific Power) Order 1917 and the Glasgow Gas (Charges) Order 1924;

“Intended tramways” means the tramways by this Order authorised;

“Lands and heritages” has the same meaning as in the Lands Valuation Acts;

“Lands Valuation Acts” means the Lands Valuation (Scotland) Act 1854 and the Acts amending the same;

“Magistrate” means a magistrate or judge having jurisdiction under the Police Acts;

“Magistrates committee” means the statutory committee appointed in pursuance of the Act of 1866;

“Municipal rates” means the rates charges and assessments imposed assessed and levied by the Corporation under the provisions of any Act;

“Order of 1905” means the Glasgow Corporation (Tramways Consolidation) Order 1905;

“Order of 1912” means the Glasgow Corporation Order 1912;

“Parish rates” means the rates and assessments leviable by the parish council of the parish of Glasgow under the provisions of any Act and includes poor rates lunacy rates education rates and any other rate or assessment;

“Police Acts” means the Glasgow Police Acts 1866 to 1924;

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“Subway” means the subway undertaking of the Corporation as defined in the Glasgow Corporation Order 1923;

“Tramways Acts” means the Glasgow Tramways Acts 1905 to 1924;

“Tramway undertaking” means the undertaking authorised by the Tramways Acts.

Incorporation of Acts.

4. The following Acts so far as they are applicable to the purposes of and are not inconsistent with this Order are hereby (except where expressly varied by this Order) incorporated with this Order:—

The Lands Clauses Acts (except section 120 of the Lands Clauses Consolidation (Scotland) Act 1845); and this Order shall be deemed to be a special Act within the meaning of those Acts.

PART II.

TRAMWAYS.

New tramways &c.

5. Subject to the provisions of this Part of this Order the Corporation may make form lay down renew work use and maintain the tramways and underground passages hereinafter in this section described in the lines and according to the levels shown on the deposited plans and sections with all necessary and proper rails chairs plates sleepers channels wires poles posts conduits section boxes tubes ropes engines engine-houses subways manholes shafts junctions sidings crossovers passing places points turntables turnouts weighbridges stables carriage-houses offices carriages sheds buildings warehouses shelters waiting rooms works and conveniences connected therewith or for the purposes thereof Provided that nothing in this Part of this Order shall authorise any interference with electric lines and works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

The tramways and underground passages hereinbefore in this section referred to and by this Part of this Order authorised are:—

Tramway No. 2—3·36 chains or thereabouts in length wholly in the city the parish of Glasgow

and county of Lanark commencing in Maryhill Road by a junction with the existing tramways of the Corporation in that road at a point 17 yards or thereabouts south-eastward from the intersection of that road with Gairbraid Avenue thence turning into and passing along that avenue and terminating in Gairbraid Avenue at a point 60 yards or thereabouts westward from the intersection of that avenue with Maryhill Road : A.D. 1925.

Tramway No. 3—0·77 chain or thereabouts in length wholly in the city the parish of Glasgow and county of Lanark commencing in Gairbraid Avenue by a junction with the proposed Tramway No. 2 hereinbefore described at a point 60 yards or thereabouts westward from the intersection of that avenue with Maryhill Road thence passing along Gairbraid Avenue and terminating in that avenue at a point 17 yards or thereabouts westward from the point of commencement :

Tramway No. 4—6 furlongs 2·00 chains or thereabouts in length wholly in the city and county of Lanark commencing in the parish of Govan in Great Western Road by a junction with the existing tramways of the Corporation in that road at a point 14 yards or thereabouts south-eastward from the intersection of that road with Crow Road thence passing along Great Western Road and Anniesland-Duntocher Road or Boulevard and terminating in that road or boulevard in the parish of New Kilpatrick at a point 114 yards or thereabouts north-westward from the intersection of Knightswood Road with Anniesland-Duntocher Road or Boulevard :

Tramway No. 5—3·12 chains or thereabouts in length wholly in the parish of Renfrew and county of Renfrew commencing in Dumbarton Road by a junction with the existing tramways of the Corporation in that road at a point 17 yards or thereabouts north-westward from the intersection of that road with Pollock Street thence turning into and passing along that street and terminating in Pollock Street at a

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point 57 yards or thereabouts north-eastward from the intersection of that street with Dumbarton Road :

Tramway No. 6—6·05 chains or thereabouts in length wholly in the city the parish of Glasgow and county of Lanark commencing in Gallowgate by a junction with the existing tramways of the Corporation in Gallowgate at a point 19 yards or thereabouts westward from the intersection of Gallowgate with Moir Street thence turning into and passing along Moir Street and terminating in London Street by a junction with the existing tramways of the Corporation in that street at a point 21 yards or thereabouts north-westward from the intersection of Moir Street with London Street :

Tramway No. 7—3·94 chains or thereabouts in length wholly in the burgh and parish of Rutherglen and county of Lanark commencing in Stonelaw Road by a junction with the existing tramways of the Corporation in that road at a point 21 yards or thereabouts northward from the intersection of Stonelaw Road with Duke's Road thence turning into and passing along Duke's Road and terminating in that road at a point 16 yards or thereabouts north-westward from the intersection of Duke's Road with Springfield Park :

Underground Passage No. 1 wholly in the city the parish of Glasgow and county of Lanark commencing in St. Enoch Square at the south end of the St. Enoch Station of the subway and terminating in or under the entrance roadway to St. Enoch Station on the London Midland and Scottish Railway at a point 8 yards or thereabouts eastward from the east side of St. Enoch Square and 107 yards or thereabouts southward from the intersection of Argyle Street with Buchanan Street :

Underground Passage No. 2 wholly in the city the parish of Glasgow and county of Lanark commencing in St. Enoch Square at the north end of the St. Enoch Station of the subway and terminating by a junction with Underground

Passage No. 1 hereinbefore described at a point thereon 15 yards or thereabouts westward from the east side of St. Enoch Square and 101 yards or thereabouts southward from the intersection of Argyle Street with Buchanan Street. A.D. 1925.

The intended tramways shall be laid as double lines except Tramway No. 3 which will be laid as a single line and the intended tramways and the underground passages by this Part of this Order authorised will be situated in or pass from through or into the parishes of Glasgow Govan Renfrew New Kilpatrick and Rutherglen the city the burgh of Rutherglen and the counties of Lanark and Renfrew.

6. The Corporation may take down and remove the building and structure forming the access to the subway station in St. Enoch Square in the city and restore the site thereof. Subway station at St. Enoch Square.

7. The intended tramways and the underground passages by this Part of this Order authorised shall be completed within four years from the date of the passing of the Act confirming this Order and on the expiration of that period the powers granted to the Corporation by this Part of this Order for the construction of such tramways and underground passages or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of tramways &c.

8.—(1) The Corporation may borrow for the purposes of the powers conferred upon them by the Tramways Acts and this Part and Part III. of this Order and in the manner authorised by and subject to the provisions with respect to the borrowing of money and the repayment thereof by means of a sinking fund of the Order of 1905 any sum of money not exceeding seven hundred and thirty-seven thousand pounds in addition to (a) the sum of seven million three hundred and fifty-seven thousand nine hundred and eighty-five pounds authorised to be borrowed by the Tramways Acts and (b) the sum of seventy-one thousand two hundred and eighty-one pounds nine shillings and nine pence authorised to be borrowed by the Govan Burgh (Tramways) Act 1893 (the tramways belonging to the former burgh of Govan having been vested in the Corporation by the Glasgow Borrowing powers for tramways.

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A.D. 1925. — Boundaries Act 1912) and if after having borrowed the said sum herein authorised or any part thereof the Corporation pay off the same by other means than by sinking fund they may reborrow the same.

(2) The amount borrowed by the Corporation for the purposes of the tramway undertaking whether in exercise of their powers under the Tramways Acts and this Part of this Order or at common law shall not exceed in amount the total sum they are authorised to borrow by the Tramways Acts and this Part of this Order.

Erection of posts on carriage-way.

9. In the construction of the intended tramways no post or other apparatus shall be erected on the carriage-way except with the consent of the Minister of Transport.

Application of Tramways Acts to new tramways.

10.—(1) The intended tramways and the underground passages by this Part of this Order authorised shall form one undertaking with the tramways authorised to be constructed under the Tramways Acts and the provisions contained in those Acts shall extend and apply to the intended tramways and so far as applicable to the said underground passages by this Part of this Order authorised in the same manner and to the like effect as if they were part of “the tramways” “the intended tramways” and “the tramway undertaking” as defined by section 2 (Interpretation) of the Order of 1905.

(2) Section 9 (Use of posts standards &c. by Postmaster-General) of the Glasgow Corporation Act 1907 shall extend and apply to the intended tramways.

Plans &c. of underground passages to be approved by Minister of Transport.

11. Before commencing the construction of the underground passages by this Part of this Order authorised the Corporation shall submit for the approval of the Minister of Transport plans sections and other details of their proposals with respect thereto and the construction of the said underground passages shall be carried out only in accordance with the plans sections and other details as approved by the Minister of Transport.

For protection of London Midland and Scottish

12. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as “the company”) shall notwithstanding the provisions of this Order and unless

otherwise agreed between the company and the Corporation apply and have effect (that is to say) :—

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Railway
Company.

(1) The Corporation shall not except with the consent of the company under the powers of this Order take or acquire any lands or property of the company or any right in under over or upon the same but the Corporation may purchase and the company shall sell if required by the Corporation such servitude or wayleave in under over or upon the lands or property of the company as may be required for making and maintaining in accordance with the provisions of this Order and subject to the provisions of this section Tramway No. 6 and the Underground Passages No. 1 and No. 2 by this Order authorised (in this section referred to as "the said works") The consideration to be paid for any such servitude shall failing agreement be determined in the manner provided by the Lands Clauses Acts with respect to the taking and purchase of land otherwise than by agreement and for the purposes of any such determination the acquisition of such servitude shall be deemed to be a taking of land within the meaning of section 6 of the Railways Clauses Consolidation (Scotland) Act 1845 :

(2) Before constructing the said works or any subsequent repairs thereof in under over upon or affecting any work or property of the company the Corporation shall submit to the company plans sections working drawings and specifications thereof showing the lines and levels and the manner in which the said works or operations are to be carried out and the mode of execution thereof for the approval of the company which approval shall not be unreasonably withheld and shall be deemed to have been given unless the company signify their disapproval within twenty-one days after submission of the said plans sections working drawings and specifications for approval :

(3) Notwithstanding the approval of plans sections working drawings and specifications the Corporation shall not without the consent of the

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company commence the execution of any of the said works and operations until the expiration of twenty-one days from the date of notice to the company of the intention of the Corporation to commence the said works and operations and the said works and operations shall when commenced be carried on to completion with all reasonable despatch and without delay :

(4) All the said works and operations shall be constructed carried on and completed by the Corporation in strict conformity with the plans sections working drawings and specifications so approved or deemed to have been approved by the company or in the event of difference as the same shall have been settled by the arbiter as hereinafter in this section provided at the sole risk and cost of the Corporation under the superintendence (if given) and to the reasonable satisfaction of the company and all such works shall be maintained repaired or renewed by the Corporation so long as they exist on the lines and levels shown on the said plans sections and working drawings and as described in the said specifications so approved at their sole risk and cost under the superintendence (if given) and to the reasonable satisfaction of the company and in the construction of Underground Passages No. 1 and No. 2 the Corporation shall not so far as practicable obstruct or render less convenient the accesses to or exits from the company's St. Enoch Station :

(5) The Corporation shall not without the previous consent in writing of the company (which consent shall not be unreasonably withheld) enter upon alter or interfere with the works and property of the company further or otherwise than may be necessary for constructing maintaining and renewing the said works to be laid in under over upon or affecting the said works and property of the company of which they shall give the company twenty-one days' notice in writing except in case of emergency in which case such notice as is reasonably practicable shall be given :

(6) The Corporation shall pay to and reimburse the company in all reasonable costs charges and expenses which they may incur in connection with the construction of the said works or the subsequent maintenance renewal use alteration replacing or repair thereof including any expense which the company may reasonably incur in connection with the employment of inspectors watchmen and others and for superintendence of the said works during construction and for all extra precautions for the protection of their works and property on account of the execution maintenance renewal use alteration replacing or repair of the said works : A.D. 1925.
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(7) All the said works and operations and the subsequent maintenance renewal alteration replacing or repair thereof shall in so far as the same affect the works and property of the company be carried out by the Corporation so as not to injure or alter or interfere with (except so far as may be necessary for carrying out the said works) or endanger the structure or stability of any of the works and property of the company and the Corporation shall at their own expense execute all underpinning or other protective works which the company may from time to time reasonably require to secure the support or safety of the said works and property of the company and should any damage or injury to or interference with the said works and property of the company be caused by or be in any way owing to the said works or operations of the Corporation or the failure of or defect in any of the said works or operations the Corporation shall at their own cost and free of all expense to the company execute and do all such works as may be necessary to restore the damage or injury and remove such interference as the case may be or the company in their option and for any of these purposes may enter upon the works or property of the Corporation and execute all such works and do all such things as may

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be necessary to restore such damage or injury or to remove or prevent such interference and the Corporation shall on demand repay to the company all reasonable costs and expenses incurred by them in connection therewith :

- (8) The Corporation shall be responsible for and make good to the company all costs charges losses damages and expenses which may be occasioned to the company or their works and property by reason of the said works and operations of the Corporation or the subsequent maintenance renewal alteration replacing or repair thereof or the failure of or defect in any of the said works or operations or of any act or omission of the Corporation or of any of the persons in their employ or of those for whom they are responsible and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such works operations maintenance renewal alteration replacing repair failure or defect or of any such act or omission :
- (9) Should it be necessary in constructing the said works or in subsequently maintaining renewing altering replacing or repairing the same to alter or remove any wires or cables or other telegraphic or telephonic apparatus belonging to or maintained by the company the Corporation shall pay to and reimburse the company in all expense incurred by them in connection with such alteration or removal and in connection with the execution of such other works as may be necessary in substitution for those so altered or removed :
- (10) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the company from maintaining and repairing and whenever in their discretion thought necessary reconstructing altering renewing or enlarging any of the works or property belonging to them without interference on the part of the Corporation and without incurring any liability to them or to any person using the said works for any

loss injury damages or expenses which may arise from such maintenance repair reconstruction alteration renewal or enlarging unless such loss injury damages or expenses shall arise from some neglect or default of the company or of their agents workmen or servants in the execution of such maintenance repair reconstruction alteration renewal or enlarging Provided that any extra expense which the company may incur in such maintenance repair renewal enlarging alteration or reconstruction by reason of the existence of any of the said works shall be paid by the Corporation :

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- (11) In the event of the company exercising any of the powers referred to in the immediately preceding subsection of this section they shall do so in such manner as to cause as little damage and interference as practicable to and with the works of the Corporation and shall give (except in case of emergency in which case such notice as is reasonably practicable shall be given) twenty-one days' previous notice in writing to the Corporation before commencing any such operations as may affect any of the said works :
- (12) If the company give to the Corporation notice that they themselves desire to construct so much of the works authorised by this Order to be constructed as will be situate in under over upon or affecting the works and property of the company the company may themselves execute such works and recover the reasonable cost thereof from the Corporation :
- (13) Any question or difference between the Corporation and the company arising under this section shall subject to the provisions of subsection (1) hereof be determined by an arbiter to be agreed upon between the Corporation and the company or failing agreement to be nominated by the Minister of Transport on the application of either party.

13. Notwithstanding anything in this Order contained the following provisions shall apply and have effect for the protection of the Clyde Valley Electrical Power Company (in this section called "the company")

For protection of
 Clyde Valley
 Electrical
 Power
 Company.

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The provisions of section 63 (For protection of Corporations) and section 66 (For protection of corporation of Glasgow) of the Clyde Valley Electrical Power Act 1901 (in this section called "the Act of 1901") shall not apply to the intended tramways and the underground passages and works authorised by this Order and the Corporation shall not in connection with such tramways passages and works interfere with the electric lines and works of the company except in accordance with the provisions of section 15 of the Electric Lighting Act 1882 but subject to the exclusion of the sections of the Act of 1901 hereinbefore specified.

Limits of deviation for underground passages.

14. In the construction of the underground passages by this Part of this Order authorised the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent not exceeding three feet upwards and three feet downwards.

Separate track not to form part of road.

15.—(1) Where any part of the Tramway No. 4 by this Part of this Order authorised is shown on the deposited plans as intended to be constructed in Anniesland-Duntocher Road or Boulevard on a track separate from the carriageway such separate track shall not for any purpose (other than for the prevention of offences and prosecution of offenders) form part of that road or boulevard and the provisions of the Tramways Act 1870 relating to roads and the following provisions of the Order of 1905 shall not apply thereto or to the construction of such tramway thereon namely:—

Section 26 Penalty for not maintaining rails and roads;

Section 28 Tramways to be kept level with surface of road.

(2) The Corporation shall provide adequate crossings over such separate track to the satisfaction of the Minister of Transport and with his approval may vary the position

or number of such crossings as they may deem expedient or as may be required by him. A.D. 1925.

(3) Nothing in this section contained shall prejudice alter or affect any of the rights and powers of the Postmaster-General under the Telegraph Acts 1863 to 1924 and under section 9 (Use of posts standards &c. by Postmaster-General) of the Glasgow Corporation Act 1907 and such separate track shall be deemed to be a "street" or "public road" for the purposes of the said Acts and section respectively.

PART III.

LANDS.

16. Subject to the provisions and for the purposes of Part II. of this Order the Corporation may enter upon take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to acquire lands.

17. The powers of the Corporation for the compulsory purchase of lands under this Order shall cease after the expiration of three years from the date of the passing of the Act confirming this Order. Period for compulsory purchase.

18. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Corporation any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges or feu duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. Servitudes &c. by agreement.

19. Whereas in the exercise of the powers of this Order it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of this Order or any of them and that such portions or some other portions less than the whole can be severed from the remainder Owners may be required to sell parts only of certain properties.

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A.D. 1925. of the said properties without material detriment
— thereto Therefore the following provisions shall have
effect :—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Schedule to this Order and whereof a portion only is required for the purposes of this Order or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled property" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any scheduled property the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the arbiter to whom the question of disputed compensation shall be submitted shall in addition to the other questions required to be determined by him determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (4) If the arbiter determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid

can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the arbiter shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbiter : A.D. 1925.

- (5) If the arbiter determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto he may in his absolute discretion determine and order that any costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the arbiter determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the arbiter determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbiter shall having regard to the circumstances of the case and his final determination think fit.

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— The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation (Scotland) Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled property or any part thereof is or is not or but for this section would be or would not be subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

The provisions of this section shall be stated in every notice to treat given in respect of a specified portion of any scheduled property.

Compensation in case of recently altered buildings.

20. In settling any question of disputed purchase money or compensation payable under this Order by the Corporation the arbiter shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirty-first day of October one thousand nine hundred and twenty-four if in the opinion of such arbiter the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Order.

Additional land.

21. The Corporation may for the purposes of this Order by agreement acquire or feu any quantity of land not exceeding in the whole twenty acres but nothing in this Order shall exempt the Corporation from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land acquired or feued under the provisions of this section.

Correction of errors in deposited plans and book of reference.

22. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers affected by such proposed correction may apply to the sheriff of the county in which such lands are situate for the correction thereof and if it appear to the said sheriff that such omission misstatement or wrong description arose from accident or mistake he shall certify the same accordingly and shall in his

certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk of the county and a duplicate thereof with the town clerk of the city or burgh or the clerk of the parish council in which the lands affected thereby are situate and such certificate and duplicates respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Corporation may take the lands and execute the works in accordance with such certificate. A.D. 1925.

PART IV.

GAS.

23.—(1) The limits of the Corporation for the supply of gas as defined in the Act of 1910 as extended by Part IV of the Order of 1912 (in this section referred to as “the limits of supply”) are hereby extended so as to include within those limits those portions of the parishes of Mearns and Eaglesham hereinafter described (that is to say) :—

Extending limits for supply of gas.

So much of the parishes of Mearns and Eaglesham contained within the boundaries formed by a line commencing at a point on the boundary between the parishes of Eastwood and Mearns where the said boundary crosses the road leading from Glasgow to Newton Mearns via Capelrig Bridge proceeding thence in a south-easterly direction along the south-west boundary of the area of supply described in the Gas Acts to a point 183 yards or thereabouts south-east of the road running from Clarkston to Mearns thence southward to a point on the road from Mearns to Eaglesham where the Earn Water crosses the same at Humbie Bridge thence in a south-westerly direction following the line forming the boundary between the parishes of Mearns and Eaglesham to a point on that boundary situated near the Hazelden Silk Printing Works and lying due south from the premises known as West Titwood thence

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for a distance of 230 yards or thereabouts in a southerly direction thence due west through the point on the road from Glasgow to Stewarton where the Brock Burn crosses that road at Dodside Bridge thence for a distance of 200 yards or thereabouts west of the centre of the said road from Glasgow to Stewarton thence in a north-easterly direction parallel to and distant 150 yards from the west side of the said road from Glasgow to Stewarton till the line meets the boundary between the parishes of Eastwood and Mearns thence in an easterly direction following the line forming the boundary between the parishes of Eastwood and Mearns to the point first mentioned.

(2) The area in this section described and added to the limits of supply by this section shall form part of the supplementary supply district defined in the Act of 1910 and the Order of 1912.

(3) The Gas Acts shall extend and apply to the area in this section described and added to the limits of supply by this section in the same manner and to the like effect as if it formed part of the supplementary supply district defined in the Act of 1910 and the Order of 1912.

PART V.

EXTENSIONS OF TIME.

Extending time for completion of tramways and street works.

24. The time limited by section 18 (Period for completion of tramways and street works) of the Act of 1914 for the construction of the Tramways Nos. 1 9 15 and 17 authorised by section 6 (New tramways) of that Act and for the construction of the Street Works Nos. 1 2 4 and 8 to 11 authorised by section 11 (Street works) of that Act as extended by the Extension of Time Orders and as further extended by section 19 (Extending time for completion of tramways and street works) of the Glasgow Corporation Order 1920 is hereby further extended for a period of five years from the seventh day of August one thousand nine hundred and twenty-five.

Extending time for completion of certain

25. The time limited by the said section 18 of the Act of 1914 for the construction of the Tramways Nos. 22 and 23 authorised by the said section 6 of that Act and

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for the construction of the Street Works Nos. 12 and 13 authorised by the said section 11 of that Act as extended by section 20 (Extending time for completion of certain other tramways and street works) of the Glasgow Corporation Order 1920 is hereby further extended for a period of four years from the seventh day of August one thousand nine hundred and twenty-seven.

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—
 other tram-
 ways and
 street
 works.

26. The time limited by section 27 (Period for completion of bridges) of the Act of 1914 for the completion of Bridge No. 1 authorised by section 23 (New bridges) of that Act as extended by section 22 (Extending times for completion of bridges) of the Glasgow Corporation Order 1920 and the time limited by the said section 27 as extended by the Extension of Time Orders for the completion of the Bridge No. 3 authorised by the said section 23 of that Act and as further extended by the said section 22 of that Order are hereby further extended as follows :—

Extending
 times for
 completion
 of bridges.

As regards the Bridge No. 1 authorised by the said section 23 for a period of four years from the seventh day of August one thousand nine hundred and twenty-seven;

As regards the Bridge No. 3 authorised by the said section 23 for a period of five years from the seventh day of August one thousand nine hundred and twenty-five.

27. The time limited by section 37 (Period for compulsory purchase) of the Glasgow Water Order 1915 for the compulsory purchase of lands for the purposes of that Order as extended by the Glasgow Water Order 1915 (Extension of Time) Order 1920 made under the Special Acts (Extension of Time) Act 1915 and as further extended by section 16 (Extension of time for compulsory purchase of lands for Glasgow Water Order 1915) of the Glasgow Corporation Order 1921 is hereby further extended for a period of five years from the twenty-eighth day of October one thousand nine hundred and twenty-five and the time limited by section 28 (Period for completion of works) of the Glasgow Water Order 1915 for the construction of the works authorised by that Order is hereby extended for a period of five years from the said twenty-eighth day of October one thousand nine hundred and twenty-five.

Extending
 time for
 compulsory
 purchase of
 lands for and
 completion
 of works
 authorised
 by Glasgow
 Water
 Order 1915.

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—
Extending
time for
completion
of water-
works
authorised
by Glasgow
Water
Order 1919;

Joint
collection
of rates in
Glasgow
parish.

28. The time limited by section 21 (Period for completion of works) of the Glasgow Water Order 1919 for the construction of works authorised by that Order is hereby extended for a period of four years from the twenty-third day of December one thousand nine hundred and twenty-four.

PART VI.

JOINT COLLECTION OF RATES.

29. In the event of the Corporation and the parish council of the parish of Glasgow under and in terms of the powers contained in subsection (3) of section 51 of the Local Government (Scotland) Act 1894 making an arrangement for a joint collection of municipal rates and parish rates the following provisions shall apply:—

In assessing levying and collecting the parish rates any fractional part of a pound of the yearly rent or value remaining after making the deductions authorised by section 37 of the Poor Law (Scotland) Act 1845 from the yearly rent or value as appearing in the valuation roll made up in pursuance of the Acts in force for the time being relating to the valuation of lands and heritages in the city—

(a) Less than five shillings shall not be reckoned as part of the yearly rent or value;

(b) Exceeding five shillings and less than ten shillings shall be reckoned as ten shillings of yearly rent or value;

(c) Exceeding ten shillings and less than fifteen shillings shall be reckoned as fifteen shillings of yearly rent or value; and

(d) Exceeding fifteen shillings shall be reckoned as one pound of yearly rent or value;

and all such fractional parts shall be assessed accordingly.

PART VII.

MISCELLANEOUS.

Alteration
of roads
&c. tem-
porarily.

30. For the purposes and during the construction of the works by this Order authorised and in maintaining the same and subject to the provisions of this Order the

Corporation may temporarily use break up or cross over or under alter or stop up any streets highways roads lanes paths quays bridges railways tramways passages sewers drains watercourses mill lades or mill dams sluices gas pipes and water pipes and electric or telephone apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such street highway road lane path quay bridge railway tramway or passage or the flow of water gas sewage or electricity or telephonic communication in any such sewer drain watercourse mill lade mill dam sluice pipe or apparatus and making compensation to all persons injuriously affected by the exercise of the powers granted to the Corporation under this Order :

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Provided that nothing in this section contained shall extend to authorise any interference with :—

- (a) any telegraphic line (as defined in the Telegraph Act 1878) or other property of His Majesty's Postmaster-General; or
- (b) any works of any undertakers within the meaning of the Electricity Supply Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

31.—(1) From and after the first day of January one thousand nine hundred and twenty-six every person who carries on within the city the trade of window cleaner and every person employed by him who performs the duties of window cleaning in the city shall be licensed by the magistrates' committee in the same manner as if they had been included among the persons mentioned in Part XIV. (General provisions as to certificates and licences) of the Act of 1866 and the provisions of that Part of that Act so far as applicable shall extend and apply to all such persons.

Window
cleaners to
be licensed.

(2) Any such licence shall be subject to such conditions as may be attached thereto by the magistrates' committee who may make byelaws for regulating the conduct of such persons and any other matter which

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— secure the proper conduct of such persons.

(3) Part XXXII (Byelaws) of the Act of 1866 shall extend and apply to any byelaws that may be made under the provisions of this section.

(4) Any offence against the provisions of this section or any byelaw made thereunder may be prosecuted before the magistrate and any penalty for such offence shall be recoverable and applied in the same manner as penalties incurred under the Police Acts.

Costs of
Order.

32. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation and may be allocated by them amongst such of the departments of the Corporation as they may deem expedient and if paid out of borrowed moneys shall be repaid out of revenue within five years from the date of the passing of the Act confirming this Order.

The SCHEDULE referred to in the foregoing Order.

(Referred to in the section of this Order of which the marginal note is "Owners may be required to sell parts only of certain properties.")

Parish.	County.	Number on Deposited Plans.
UNDERGROUND PASSAGES.		
Glasgow	Lanark	44

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